

SENATE No. 3107

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, June 1, 2026.

The committee on Senate Ways and Means to whom was referred the Senate Bill relative to advancing the profession of commercial interior design. (Senate, No. 2620), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 3107).

For the committee,
Michael J. Rodrigues

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An Act relative to advancing the profession of commercial interior design.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 44 of chapter 7C of the General Laws, as amended by section 3 of
2 chapter 73 of the acts of 2025, is hereby further amended by striking out the definition of
3 “Designer”, and inserting in place thereof the following definition:-

4 “Designer”, an individual, corporation, partnership, sole proprietorship, joint stock
5 company, joint venture or other entity engaged in the practice of architecture, landscape
6 architecture, registered commercial interior design or engineering, which satisfies the following:

7 (i) if an individual, the individual is a registered architect, landscape architect,
8 commercial interior designer or engineer;

9 (ii) if a partnership, a majority of the partners are persons who are registered architects,
10 landscape architects, commercial interior designers or engineers;

11 (iii) if a corporation, sole proprietorship, joint stock company or other entity, the majority
12 of the directors or a majority of the stock ownership and the chief executive officer are persons

who are registered architects, landscape architects, commercial interior designers or engineers,
and the person to have charge of the project is registered in the discipline required for the
project; or

(iv) if a joint venture, each joint venturer satisfies the requirements of this section.

SECTION 2. Said section 44 of said chapter 7C of the General Laws, as so appearing, is
hereby further amended by inserting after the definition of “Board” the following definition:-

“Commercial Interior Designer”, an individual, corporation, partnership, sole
proprietorship, joint stock company, joint venture or other entity engaged in the practice of
commercial interior design, who serves as the prime consultant for projects that primarily
involve construction or other work relating to the nonstructural interior elements of a building or
structure and who provides services that do not require a registered architect, landscape architect
or engineer; provided, however, that a commercial interior designer shall be registered pursuant
to sections 298 to 307 of chapter 112.

SECTION 3. Said section 44 of said chapter 7C of the General Laws, as so amended, is
hereby further amended by striking out the definition of “Interior designer”.

SECTION 4. Said section 44 of said chapter 7C of the General Laws, as so amended, is
hereby further amended by striking out, in lines 22, 24, 31, 60, 62 and 63 the word “interior” and
inserting in place thereof, in each instance, the following words:- commercial interior.

SECTION 5. Section 45 of said chapter 7C of the General Laws is hereby amended by
striking out subsection (a), as appearing in the 2024 Official Edition, and inserting in place
thereof the following subsection:-

(a) There shall be within the executive office for administration and finance a designer selection board, consisting of 11 members. Eight members shall be appointed by the governor, 3 of whom shall be architects registered in the commonwealth or architects who are unregistered in the commonwealth but have not less than 10 years' experience as an architect registered by a National Council of Architectural Registration Boards member board or who may be architects emeritus; 1 of whom shall be a registered commercial interior designer with not less than 10 years of experience as a National Council for Interior Design Qualifications-certified interior designer, 3 of whom shall be registered engineers or currently unregistered but with not less than 10 years' experience as a registered engineer; and 1 of whom shall be a representative of the public who is not architect, engineer or construction contractor. Three additional members shall be appointed as follows: 1 registered architect designated by the Massachusetts chapter of the American Institute of Architects, Inc.; 1 registered engineer designated by the government affairs council of design professionals; and 1 general contractor designated by the Associated General Contractors of Massachusetts, Inc. No member shall have a record of disciplinary action. Members shall be appointed for a term of 2 years and may be reappointed for not more than 1 successive 2-year term. The director shall designate a representative, who shall be the project manager in the case of a project under the jurisdiction of the office of project management, to act as a nonvoting member of the board for each project under their jurisdiction under consideration by the board.

SECTION 6. Chapter 13 of the General Laws is hereby amended by adding the following section:-

Section 111. (a) There shall be within the division of occupational licensure a board of registration of commercial interior designers, consisting of 5 members appointed by the

governor, 4 of whom shall have been engaged in the practice of interior design for a period of not less than 5 years prior to their appointment and shall be registered commercial interior designers and 1 of whom shall be a member of the general public, subject to section 9B. Members of the board shall be residents of the commonwealth.

(b) Each member of the board shall serve for a term of 3 years and until the governor appoints a successor. No member shall be appointed for more than 2 consecutive full terms; provided, however, that a member appointed for less than a full term may serve 2 full terms in addition to such part of a full term.

(c) A member may be removed by the governor for neglect of duty, misconduct or malfeasance or misfeasance in office after written notice of the charges against them and an opportunity to be heard. Upon the death, resignation or removal of any member of the board, the governor shall fill the vacancy for the remainder of that member's term.

(d) Members of the board shall serve without compensation but shall be reimbursed for actual and necessary expenses reasonably incurred in the performances of their duties as members or on behalf of the board.

(e) The board shall hold not less than 2 regular meetings annually and may hold special meetings as required. Time, place and notice of all meetings shall be as required by rules or bylaws determined by the board. The board shall organize and choose from its own members a chair, a vice chair and a secretary at the first regular annual meeting. A quorum shall consist of 3 members.

(f) The board may make such rules or bylaws, not inconsistent with law, as it may deem necessary in the performance of its duties including, but not limited to, rules and regulations

governing academic and practical experience. The board shall have a seal and its members may administer oaths in the performance of their duties. The board shall have power to summon witnesses, take testimony and require proofs concerning all matters within its jurisdiction.

SECTION 7. Chapter 112 of the General Laws is hereby amended by adding the following 10 sections:-

Section 298. As used in sections 298 to 307, inclusive, the following words shall have the following meanings unless the context clearly requires otherwise:

“Board”, the board of registration of commercial interior designers established in section 111 of chapter 13.

“Building”, an enclosed structure that has human occupancy or habitation as its principal purpose as defined in the state building code.

“Certificate of registration”, the 2-year license to practice registered commercial interior design issued by the board.

“Commercial interior design”, the design and planning of interior spaces in buildings subject to the state building code.

“Nonstructural interior construction”, non-seismic or non-structural construction within a building or structure which does not require structural bracing, does not affect the structural integrity of the building, is primarily concerned with the interior aspects of design and does not include any load-bearing components.

“Practice of registered commercial interior design”, in relation to performing or agreeing to perform or holding one’s self out as able to perform professional services in connection with

obtaining a building permit independent of an architect licensed under sections 60A to 60P, inclusive, for the design and construction of nonstructural interior construction, including consultations, investigations, evaluations, preliminary studies, aesthetic design and preparation of plans, specifications and contract documents, in accordance with all codes and regulations, coordination of building systems, administration of construction contracts and any other similar services in connection with the design and construction of nonstructural interior construction, regardless of whether one or all of these services are being performed and regardless of whether these services are performed directly or as the head of an office or organization performing them; provided, however, that the practice of registered commercial interior design shall not include the practice of architecture or engineering as defined in this chapter; and provided further, that the practice of registered commercial interior design does not include services that alter the building's occupancy classification and use designation, structure, or primary fire, life safety, mechanical, electrical, plumbing or exits as defined by the state building code, or other related primary building systems except as expressly permitted by applicable law.

“Registered commercial interior designer”, any person who has been issued a certificate of registration to engage in the practice of registered commercial interior design.

Section 299. Upon registration by the board, an individual who has passed the interior design examination administered by the National Council for Interior Design Qualification may use the title registered commercial interior designer. Such individual shall, upon satisfactory completion of the aforementioned examination and any other requirements and qualifications as deemed necessary by the board, send to the board a copy of documentation of the proof of: (i) passage of the National Council for Interior Design Qualification exam; (ii) graduation from a program accredited by the Council of Interior Design Accreditation and satisfactory evidence of

such practical experience in commercial interior design work as the board may by regulation prescribe, or satisfactory evidence of such other academic experience, practical experience or combination thereof as the board may by regulation prescribe; (iii) any certifications awarded to the individual by the National Council for Interior Design Qualification; (iv) and any other documentation as required by the board, which shall include, but not be limited to, the individual's name, mailing address and email address; provided, however, that such individual shall update the board of any changes to such information as they occur. Such documentation shall be placed on file with the division of occupational licensure.

Section 300. (a) An applicant seeking to become a registered commercial interior designer shall pay to the board, upon filing their original application, a fee to be determined pursuant to section 3B of chapter 7. After verification of the documentation required pursuant to section 299 and receipt of the application fee, the board shall issue a certificate of registration. Notwithstanding any general or special law or rule or regulation to the contrary, the commissioner of occupational licensure or their designee, as the custodian of any documentation required by this section, shall enforce this section and may use said documentation, or any lack thereof, as deemed necessary.

A registered commercial interior designer shall be required to complete continuing education courses. Continuing education shall be gained through coursework delivered in education credits. The quantity and content designation of education credits shall be determined by the board.

143 It shall be unlawful for an individual who is not registered by the board to use the title
144 registered commercial interior designer, or any title or device indicating that the individual is a
145 registered commercial interior designer.

146 Nothing in sections 298 to 307, inclusive, shall prohibit: (i) a person from performing
147 commercial interior design services or using the title commercial interior designer, commercial
148 interiors consultant, commercial interior decorator or a similar title; provided, however, that the
149 word “registered” shall not be used in conjunction with such a title; (ii) an architect as defined in
150 section 60A from offering or engaging in the practice of registered commercial interior design;
151 (iii) a person from performing professional services limited to the planning, design and
152 implementation of kitchen and bath spaces or the specification of products for kitchen and bath
153 spaces; or (iv) an employee of a retail establishment from providing consultation regarding
154 interior design, decoration, furnishings, furniture or fixtures offered for sale by such
155 establishment and from receiving compensation from such establishment for such services.

156 A registered commercial interior designer shall not engage in the practice of architecture
157 as defined in section 60A or the practice of engineering as defined in section 81D, or any other
158 profession regulated under the laws of the commonwealth, unless specifically authorized to do so
159 under sections 298 through 307, inclusive, or to prepare, sign or seal plans with respect to such
160 practice or in connection with any governmental permits unless licensed or otherwise permitted
161 to do so under such laws.

162 (b) An individual who violates sections 298 to 307, inclusive, may be punished by a fine
163 of not more than \$500 or by imprisonment in a jail or house of correction for not more than 3
164 months, or both, or by revocation of certificate of registration by the board.

(c) All licensing and application fees collected pursuant to sections 298 to 307, inclusive, shall be deposited into the Division of Occupational Licensure Trust Fund established in section 35V of chapter 10.

Section 301. Every 2 years, not later than May 1, the board shall transmit to every registered commercial interior designer registered in the commonwealth an application for renewal of certificate of registration. Such applications shall be returned to the board not later than August 1. Each such application shall be accompanied by a renewal fee to be determined pursuant to section 3B of chapter 7. After verification of the facts stated on the renewal applications, the board shall issue a certificate of registration, dated September 1, and which shall expire on August 31 of the 2-year period following the date of the certificate of registration. Any holder of a certificate of registration who fails to renew their application within 60 days of notification by the board that their license has expired, shall, before again engaging in the practice of registered commercial interior design within the commonwealth, be required to register, pay a fee as determined by the board and may be required by the board to be re-examined.

Section 302. Each registered commercial interior designer shall have a seal of a design authorized by the board. All plans, specifications and reports prepared by a registered commercial interior designer or under their supervision shall be stamped with the impression of such seal. A registered commercial interior designer shall impress their seal on any plans, specifications or reports only if their certificate of registration is in full force and if they were the author of such plans, specifications or reports or were responsible for their preparation.

Section 303. The board may revoke, suspend or annul the provisional registration or certificate of registration, or reprimand, censure or otherwise discipline a registrant, upon proof satisfactory to the board that:

(i) the holder of such provisional registration or certificate of registration is practicing in the commonwealth in violation of sections 298 through 307, inclusive, or any rule or regulation promulgated by the board;

(ii) such provisional registration or certificate of registration was obtained by fraud or misrepresentation;

(iii) any money or thing of value, except fees prescribed or authorized by said sections, was paid or received to secure the issuance of such provisional registration or certificate of registration;

(iv) the holder of such provisional registration or certificate of registration has engaged in fraud or deceit, or has been responsible for gross negligence, incompetence or misconduct in the practice of registered commercial interior design;

(v) the holder of such a provisional registration or certificate of registration has permitted or suffered their original seal to be affixed to any plans, specifications or drawings not prepared by them or under their personal supervision by their regularly employed subordinates;

(vi) the holder of a provisional registration or certificate of registration has affixed their signature to plans, drawings, specifications or other instruments of service which have not been prepared by them or in their office, or under their immediate and responsible direction or has permitted their name to be used for the purpose of assisting any person to evade this chapter; or

(vii) the holder of such provisional registration or certificate of registration has an interest in the manufacture, sale or installation of any component or process in a project for which they are the registered commercial interior designer, which interest they have not disclosed to their client in such manner as the board shall by regulation prescribe.

Section 304. Complaints against a registered commercial interior designer involving any matter coming within the jurisdiction of the board shall be in writing and shall be filed with the board. The respondent registered commercial interior designer shall have the right to a hearing and to appear personally, with or without counsel, to cross-examine witnesses against them and to produce evidence and witnesses in their defense. The board shall set the time and place for such hearing and shall cause a copy of the complaint, together with a notice of the time and place fixed for the hearing, to be sent by registered mail to the respondent registered commercial interior designer, at their latest place of residence or business known to the board, at least 10 days before such date. If after such hearing the board finds that grounds for discipline exist, it may issue an order revoking, suspending or annulling the provisional registration or certificate of registration of the respondent registered commercial interior designer, or reprimanding, censuring or otherwise disciplining them. If the board finds that no grounds for discipline against the respondent registered commercial interior designer exist it shall enter an order dismissing the complaint. If the board orders that a provisional registration or certificate of registration be revoked, suspended or annulled, the board shall, in writing, notify the state secretary and the clerk of the city or town in the commonwealth wherein such registered commercial interior designer has their principal place of business.

The board may re-issue a provisional registration or certificate of registration to any person whose provisional registration or certificate of registration has been revoked. Application

for the reissuance of a provisional registration or certificate of registration shall be made in such manner as the board may direct and shall be accompanied by a fee to be determined pursuant to section 3B of chapter 7.

Section 305. Every provisional registration or certificate of registration issued and remaining in force under sections 298 through 307, inclusive, shall be prima facie evidence in the courts of the commonwealth that the person named therein is legally registered as a registered commercial interior designer for the period for which it is issued, and of all other facts therein stated.

Section 306. The determination of any person, or of any officer, board or commission of the commonwealth or of any political subdivision thereof, who makes a contract to have services performed for them or it, that the principal services to be performed thereunder involve the practice of registered commercial interior design, shall be final, unless said determination was made in bad faith, or was fraudulent, capricious or arbitrary.

Section 307. The board shall be charged with the enforcement of this section and sections 298 to 306, inclusive of this chapter. If a person refuses to comply with any decision of the board, the attorney general shall, upon request of the board, file a petition for the enforcement of such decision in equity in the superior court for Suffolk county or for the county in which the defendant resides or has a place of business. After due hearing, the court shall order the enforcement of such decision or any part thereof, if legally and properly made by the board.

SECTION 8. Notwithstanding any general or special law to the contrary, an individual who has completed not less than 10 years of full-time, verifiable professional experience in the profession of interior design shall be eligible for provisional registration; provided, however, that

the individual shall apply for registration not more than 12 months after the first annual meeting of the board of registration of commercial interior designers following the effective date of this act. The applicant, upon review and consent of the board, may be issued a provisional registration and be given 3 calendar years from the first annual meeting of the board following the effective date of this act to provide substantial proof to the board of certification by the National Council for Interior Design Qualification, at which time full registration shall be granted. If proof of certification is not provided to the board within the 3-year period, the applicant's provisional registration shall be revoked and reapplication, including satisfaction of all requirements at the time of reapplication, shall be required for the individual to receive a certificate of registration. During the 3 year-period of provisional registration, the individual shall maintain all current fees and uphold all requirements for registration and renewal until such time as the NCIDQ certification is obtained. The board may adopt rules and promulgate regulations to clarifying requirements for academic and practical experience, including, but not limited to, guidelines published by the National Council for Interior Design Qualification. The board may adopt the examinations and recommended grading procedures of the National Council for Interior Design Qualification.

SECTION 9. Section 5 shall not affect or reduce the tenure of members of the designer selection board serving at the time of the effective date of this act.

SECTION 10. Sections 1 through 9, inclusive, shall take effect 1 year following the effective date of this act.